

Malkhan Singh v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 7 October 2025 · Writ-C No. 33536 of 2025 · **Writ disposed; deposit Rs. 50,000 and apply to Assessing Officer under Clause 6.8.**

HEADNOTE

Where a recovery citation for electricity dues is challenged and it is unclear whether assessment procedure was followed or hearing given, the writ is disposed of directing a limited deposit and an application to the Assessing Officer, who shall decide the objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 by a reasoned order after confronting the consumer with adverse material and granting personal hearing.

FACTUAL SUMMARY

The petitioners challenged a Recovery Citation dated 31 May 2025 seeking to recover Rs. 2,64,237 from them towards electricity dues. They claimed that no opportunity of hearing had been given before the demand was created. On the record it was not clear whether the assessment procedure had been fully complied with. Counsel for the Distribution Corporation was heard. The Court found no useful purpose in keeping the petition pending or calling for a counter-affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing before Assessing Officer on disputed electricity demand

HOLDING

Subject to depositing Rs. 50,000 towards the disputed demand within one month and filing an application before the Assessing Officer within a further week, the Assessing Officer shall decide the petitioners' objection under Clause 6.8 by a reasoned and speaking order strictly in accordance with law, after confronting them with all adverse material relied against them and granting personal hearing, preferably within two months of the application. ¶ 4-5

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Want of hearing before the recovery citation was not decided on merits; the Court remitted the objection to the Assessing Officer under Clause 6.8, subject to a Rs. 50,000 deposit, for a speaking order after personal hearing and confrontation with adverse material. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE HAD BEEN FULLY COMPLIED WITH, AND THE MERITS OF THE RECOVERY CITATION DATED 31.05.2025

Court found compliance unclear and remitted to the Assessing Officer under Clause 6.8 without quashing or upholding the demand. ¶ 3